

DEPARTMENT OF REGULATORY AGENCIES

Office of Speech-Language Pathology Certification

SPEECH-LANGUAGE PATHOLOGIST RULES AND REGULATIONS

4 CCR 748-1

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

1.1 Authority

These regulations are adopted pursuant to the authority in sections 12-20-204(1) and 12-305-115, C.R.S. and are intended to be consistent with the requirements of the State Administrative Procedures Act, section 24-4-101 et seq. (the "APA"), C.R.S., and the Speech-language Pathology Practice Act, sections 12-305-101 et seq. (the "Act"), C.R.S.

1.2 Scope and Purpose

These regulations shall govern the process to become a speech-language pathologist and the practice of speech-language pathology in Colorado.

1.3 Application for Certification

The purpose of this Rule is to specify the form and manner of an application for speech-language pathologist certification, as required by section 12-305-107, C.R.S.

A. An applicant for certification must:

1. Submit a completed application for certification in a manner prescribed by the Director;
2. Submit with the application all fees established by the Director pursuant to section 24-34-101 et seq., C.R.S.;
3. Attest that the applicant will, prior to providing speech-language pathology services to patients, maintain the professional liability insurance coverage required under Rule 1.6;
4. Attest that the applicant has developed a written plan ensuring the security of patient records in compliance with section 12-305-118, C.R.S.;
5. Attest that the information in the application is true and correct to the best of the applicant's knowledge and belief; and
6. Submit additional information as may be required by the Director.

1.4 Education and Clinical Fellowship Requirements

The purpose of this Rule is to detail the educational and clinical fellowship requirements for certification set forth in section 12-305-107(1), C.R.S.

- A. An applicant for certification must have successfully completed a master's or higher degree in communication sciences and disorders granted by an accredited institution of higher education recognized by the United States Department of Education. An applicant is presumed to have met the requirements of this paragraph if the applicant has successfully completed a master's or higher degree in a speech-language pathology program that is accredited by the Council on Academic Accreditation of the American Speech-Language-Hearing Association or its successor association.
- B. An applicant for certification must have successfully completed a speech-language pathology clinical fellowship approved by either the Director or a Director-approved national certifying body. The American Speech-Language-Hearing Association is a Director-approved national certifying body.
- C. An applicant who holds a current Certificate of Clinical Competence (CCC) granted by the American Speech-Language-Hearing Association in speech-language pathology meets the education and clinical fellowship requirements of this Rule.
- D. The Director does not require that an applicant maintain ASHA membership as a condition of certification.

1.5 Examination Requirement

The purpose of this Rule is to clarify the examination requirement set forth in section 12-305-107(1)(c), C.R.S.

- A. An applicant is eligible for certification by examination only if the applicant:
 - 1. Has passed the national examination approved by the American Speech-Language-Hearing Association or its successor association;
 - 2. Has passed an examination that, in the Director's determination, is substantially equivalent to the examination approved by the American Speech-Language-Hearing Association or its successor association, subject to the requirements of paragraph (B) of this Rule; or
 - 3. Holds a current Certificate of Clinical Competence (CCC), granted by the American Speech-Language-Hearing Association or its successor association, in speech-language pathology.
- B. An applicant seeking certification under subparagraph (A)(2) of this Rule bears the burden of proving to the Director that the examination is substantially equivalent to the examination approved by the American Speech-Language-Hearing Association or its successor association.

1.6 Certification by Endorsement

The purpose of this Rule is to delineate the requirements for certification by endorsement set forth in section 12-20-202(3), C.R.S.

- A. An applicant who holds a current, valid license or certification as a speech-language pathologist in another jurisdiction or through the federal government, or who holds a military occupational specialty, as defined in section 24-4-201, C.R.S., may apply for certification by endorsement.
- B. An applicant may demonstrate substantially equivalent experience or credentials pursuant to section 12-20-202(3)(d), C.R.S., if the applicant meets the requirements of Rules 1.4 and 1.5.

- C. A endorsement applicant who was licensed or certified in another jurisdiction on the basis of a current Certificate of Clinical Competence (CCC) granted by the American Speech- Language-Hearing Association in speech-language pathology is be deemed to have met the requirements of Rules 1.4 and 1.5.

1.7 Certification Requirements: Credit for Military Experience

The purpose of this Rule is to outline the conditions and procedures governing the evaluation of an applicant's military training and experience under section 12-20-202(4), C.R.S.

- A. An applicant for certification as a speech-language pathologist may submit information about the applicant's education, training, or experience acquired during military service. It is the applicant's responsibility to provide timely and complete information for the Director's review.
- B. In order to meet the requirements for certification, such education, training, or experience must be substantially equivalent to the required qualifications that are otherwise applicable at the time the application is received by the Director.
- C. The Director will determine, on a case-by-case basis, whether the applicant's military education, training, or experience meet the requirements for certification.

1.8 Professional Liability Insurance

The purpose of this Rule is to delineate the professional liability insurance requirements set forth in section 12-305-107(2) and (4), and section 12-305-108(2), C.R.S.

- A. A certificate holder or provisional certificate holder who provides speech-language pathology services to patients shall maintain or be covered by professional liability insurance coverage:
 - 1. With an insurance company authorized to do business in Colorado; and
 - 2. In an amount no less than one million dollars per claim and three million dollars per annum in the aggregate.
- B. A certificate holder or provisional certificate holder who is not providing speech-language pathology services to patients is exempt from maintaining and being covered by professional liability insurance coverage.
- C. An applicant, certificate holder, or provisional certificate holder shall submit proof of coverage to the Director upon request.

1.9 Reinstatement of Expired Certification

The purpose of this Rule is to state the requirements for reinstatement of a certification that has expired, pursuant to sections 12-20-202 and 12-20-105, C.R.S.

- A. An applicant seeking reinstatement of an expired certification must complete a reinstatement application, pay a reinstatement fee, attest to complying with the professional liability insurance coverage requirements of Rule 1.6, and attest that the applicant has developed a written plan ensuring the security of patient records in compliance with section 12-305-118, C.R.S.
- B. An applicant seeking to reinstate a certification that has been expired for less than two (2) years from the date of receipt of the reinstatement application must provide documentation of ten Professional Development Activities (PDA), as defined in Rule 1.9, for each year the certificate was expired.

- C. An applicant seeking to reinstate a certification that has been expired for two or more years but less than five years from the date of receipt of the reinstatement application must demonstrate competency to practice, in a manner required by the Director, by:
 - 1. Providing verification of licensure or certification in good standing from another state, along with proof of active practice in that state for two of the previous five years from the date of application for reinstatement;
 - 2. Providing documentation of the applicant's completion, within the two years immediately preceding the application for reinstatement, of ten PDA, as defined in Rule 1.9, for each year the certificate was expired;
 - 3. Providing documentation that the applicant has active certification by the American Speech-Language-Hearing Association; or
 - 4. Any other means approved by the Director.
- D. An applicant seeking to reinstate a certification that has been expired for five or more years from the date of receipt of the reinstatement application must demonstrate competency to practice, in a manner required by the Director, by:
 - 1. Providing verification of licensure or certification in good standing from another state, along with proof of active practice in that state for two of the previous five years from the date of application for reinstatement;
 - 2. Providing evidence of supervised practice for a period of no less than six months, subject to the terms established by the Director; or
 - 3. Any other means approved by the Director.

1.10 Inactive Certification Status and Reactivation of Certification

The purpose of this Rule is to specify the regulations governing inactive certification status and reactivation of certification as authorized under section 12-20-203, C.R.S.

- A. A certified speech-language pathologist may request inactive certification status in the manner prescribed by Director.
- B. A speech-language pathologist with an inactive certificate shall not engage in any act or conduct that constitutes the practice of speech-language pathology.
- C. A speech-language pathologist with an inactive certificate is exempt from the continuing professional competency requirements of section 12-305-109, C.R.S., and Rule 1.9.
- D. Inactive certificate status does not:
 - 1. Prevent the Director from investigating complaints or imposing discipline against a speech-language pathologist in accordance with Article 305 of Title 12, C.R.S.; or
 - 2. Limit or restrict the Director's functions, duties, or obligations, under Article 305 of Title 12, C.R.S.
- E. Except as otherwise provided by this Rule, a speech-language pathologist with an inactive certificate remains subject to all provisions of these rules and all provisions of Article 305 of Title 12, C.R.S.

- F. A speech-language pathologist may reactivate an inactive certificate by:
1. Submitting a completed application for reactivation and paying a fee established by the Director;
 2. Submitting proof, in a manner prescribed by the Director, that the speech-language pathologist's licenses or certificates held in other states or jurisdictions are in good standing;
 3. Attesting that the applicant will, prior to providing speech-language pathology services to patients, maintain the professional liability insurance coverage required under Rule 1.6; and
 4. Providing documentation of the applicant's completion, within the two (2) years immediately preceding the application for reactivation, of ten (10) PDA, as defined in Rule 1.9, for each year the certificate was inactive.

1.11 Continuing Professional Competency

The purpose of this Rule is to establish a program of ongoing continuing professional competency as set forth in section 12-305-109, C.R.S., wherein a certified speech-language pathologist shall maintain and demonstrate continuing professional competency in order to renew, reinstate, or reactivate a certificate to practice speech-language pathology in the state of Colorado.

A. Definitions

1. *Continuing Professional Competency*: the ongoing ability of a speech-language pathologist to learn, integrate, and apply the knowledge, skill, and judgment to practice as a speech-language pathologist according to generally accepted standards and professional ethical standards.
2. *Continuing Professional Development (CPD)*: the Director's program through which a certificate holder can satisfy the continuing professional competency requirements in order to renew, reinstate, or reactivate a certificate.
3. *Deemed Status*: a certificate holder who satisfies the continuing professional competency requirements of an accrediting body or entity approved by the Director pursuant to section 12-305-109(2), C.R.S., may qualify for "Deemed Status."
4. *Learning Plan*: the Director-approved form through which a certificate holder documents his/her goals and plans of learning that were developed from his/her reflective self-assessment (RSAT), which is defined below. A certificate holder shall execute his/her learning plan by completing professional development activities (PDA) as required before a certificate is renewed.
5. *Military Exemption*: as set forth in section 12-20-302, C.R.S., a certificate holder who has been called to federally funded active duty for more than 120 days for the purpose of serving in a war, emergency or contingency may request an exemption from the continuing professional competency requirements for the renewal, reinstatement, or reactivation of his/her certification for the one year renewal period that falls within the period of service or within six months following the completion of service.

6. *Professional Development Activities (PDA)*: learning activities undertaken to increase the certificate holder's knowledge and skill or hone existing knowledge and skill for the purpose of continuing professional competency. PDA are equivalent to clock hours; one PDA is equal to one clock hour (60 minutes).
7. *Program Manual*: an instructional guide to assist the certificate holder in understanding the continuing professional competency requirements and the CPD program.
8. *Reflective Self-assessment Tool (RSAT)*: a reflective practice tool in which a certificate holder can reflect upon his/her knowledge and skills pertaining to the foundational areas of speech- language pathology taking into account the certificate holder's current level and area of practice.

B. Continuing Professional Competency Requirements

1. At the time of each certificate renewal, the certificate holder shall demonstrate continuing professional competency in order to renew by:
 - a. Participation in the Continuing Professional Development (CPD) program;
 - b. Participation in a program of continuing professional competency through an accrediting body or an entity approved by the Director as set forth in section 12-305-109(2), C.R.S. this status is hereafter known as "Deemed Status" as defined herein; or
 - c. Receiving an exemption for military service as defined in section 12-20-302, C.R.S. Military exemptions must be approved by the Division of Professions and Occupations. A certificate holder seeking a military exemption shall submit a request in writing with evidence that his/her military service meets the criteria established in section 12-20-302, C.R.S., and section (E) of this Rule.
2. A certificate holder shall attest at the time of the renewal of a certificate to his/her compliance with continuing professional competency requirements.

C. Continuing Professional Development (CPD) Program

1. The CPD Program entails the following:
 - a. The certificate holder shall complete the Reflective Self-Assessment Tool (RSAT) once per renewal period. A certificate holder shall use the form approved by the Director.
 - b. The execution of a Learning Plan once per renewal period that is based upon the certificate holder's RSAT. The certificate holder shall use the form approved by the Director.
 - c. Accrual of ten PDA per year of each renewal period.
2. Professional Development Activities (PDA)
 - a. PDA must be relevant to the certificate holder's practice as a speech-language pathologist and pertinent to his/her learning plan. The Director will not pre-approve specific courses or providers. The certificate holder shall determine which activities and topics will meet his/her learning plan, and select an appropriate course and provider.

- b. PDA are organized into the following six categories. One PDA is granted per one clock hour of qualifying activity with the exception of the category "Presentations" in which two PDA are credited for every one hour of presentation delivery. This 2:1 ratio acknowledges the preparation of the presentation. PDAs are credited only once per presentation.
 - (1) Volunteer Service
 - (2) Mentoring/Supervision
 - (3) Presentations
 - (4) Coursework
 - (5) Independent Learning
 - (6) Group Study
- c. PDA must be earned through a minimum of two categories. Specifically, for each year of a renewal period, no more than five PDA will be credited in any one category. The exception to this requirement is the "Coursework" category in which all ten PDA may be accrued and credited.
- d. PDA will be accepted if the activity is included in the current Program Manual. The current Program Manual will be available to all certificate holders through the program and will set forth accepted PDA within each category. The Director has sole discretion to accept or reject PDA that are not identified in the current program manual.
- e. The total required annual PDA must be earned within the same year in which credit is requested. PDA will be credited toward only one renewal period.

D. Audit of Compliance

- 1. The following documentation is required for an audit of compliance of a certificate holder's participation in the CPD program:
 - a. a signed Learning Plan that contains the certificate holder's goals in the form and manner set forth in the current Program Manual as approved by the Director.
 - b. documentation of the required PDA in compliance with the current Program Manual and this Rule.
 - c. the Director has sole discretion to accept or reject PDA that do not meet the criteria established by the Director as defined in the current Program Manual and this Rule.
- 2. As set forth in section 12-305-109(4), C.R.S., records of assessments or other documentation developed or submitted in connection with the CPD Program are confidential and not subject to inspection by the public or discovery in connection with a civil action against a speech-language pathologist or other professional regulated under this title. A person or the Director shall not use the records or documents unless used by the Director to determine whether a speech-language pathologist is maintaining continuing professional competency to engage in the profession.

3. The current Program Manual will set forth the documentation methods and standards for compliance with this Rule.

E. Deemed Status

1. Qualification. In order to qualify for "Deemed Status" upon renewal, the certificate holder shall:
 - a. Attest to his/her deemed status; and;
 - b. Attest that the requested continuing professional competency program is substantially equivalent to the CPD program administered by the Director and must include, at a minimum each renewal period, the following components:
 - (1) An assessment of knowledge and skills;
 - (2) Ten contact hours of continuing education or learning activities per year of the renewal period; and
 - (3) Demonstration of completion of continuing competency activities.
2. Administrative Approval. The Director has sole discretion to administratively approve accrediting bodies and/or entities meeting the criteria established in this section. Once an accrediting body and/or entity is approved, such approval will be publically published.
3. Compliance Audit. A Certificate holder claiming "Deemed Status" is subject to an audit of compliance. To satisfy an audit of compliance, the certificate holder shall submit appropriate evidence of participation in a qualifying program through submission of:
 - a. A letter from the accrediting body or entity approved by the Director specifying that the certificate holder has completed the continuing professional competency program, or
 - b. Other documentation approved by the Director which reflects the certificate holder's completion of a program of continuing professional competency.

F. Military Exemption.

1. Military exemptions must be approved by the Division of Professions and Occupations. A certificate holder seeking a military exemption shall submit a request in writing with evidence that his/her military service meets the criteria established in section 12-20-302, C.R.S.
2. After being granted a military exemption, in order to complete the renewal process, a certificate holder shall attest to his/her military exemption.

G. Records Retention. A certificate holder shall retain documentation demonstrating his/her compliance for either two complete renewal periods or four years, whichever period is longer.

H. Non-Compliance. Falsifying an attestation or other documentation regarding the certificate holder's compliance with continuing professional competency requirements constitutes the falsification of information in an application and may be grounds for discipline pursuant to sections 12-305-112(2)(b) and (k), C.R.S.

- I. Reinstatement and Reactivation. A certificate holder seeking to reinstate or reactivate a certificate shall meet the continuing professional competency requirements detailed in Rule 1.7 and Rule 1.8.

1.12 Duty to Self-Report Certain Medical Conditions

The purpose of this Rule is to specify the notification requirements regarding a physical or mental illness or condition that affects a certificate holder's ability to practice speech-language pathology or practice as a speech-language pathologist with reasonable skill and safety to patients, pursuant to section 12-305-117, C.R.S.

- A. No later than thirty days from the date a physical or mental illness or condition affects a certified speech-language pathologist's ability to perform speech-language pathology services with reasonable skill and safety, the certified speech-language pathologist shall provide the Director, in writing, the following information:
1. The diagnosis and a description of the illness or condition;
 2. The date that the illness or condition was first diagnosed;
 3. The name of the current treatment provider and documentation from the current treatment provider confirming the diagnosis, date of onset, and treatment plan; and
 4. A description of the certified speech-language pathologist's practice and any modifications, limitations or restrictions to that practice that have been made as a result of the illness or condition.
- B. The certified speech-language pathologist shall notify the Director of any worsening of the illness or condition, or any significant change in the illness or condition that affects the certified speech-language pathologist's ability to practice with reasonable skill and safety, within thirty days of the change of the illness or condition. The certified speech-language pathologist shall provide the Director, in writing, the following information:
1. The name of the current treatment provider, documentation from the current treatment provider confirming the change of the illness or condition, the date that the illness or condition changed, the nature of the change of the illness or condition, and the current treatment plan; and
 2. A description of the certified speech-language pathologist's practice, and any modifications, limitations, or restrictions to that practice that have been made as a result of the change of condition.
- C. Compliance with this Rule is a prerequisite for eligibility to enter into a Confidential Agreement with the Director pursuant to section 12-305-117, C.R.S. However, mere compliance with this Rule does not require the Director to enter into a Confidential Agreement. Rather, the Director will evaluate all facts and circumstances to determine whether a Confidential Agreement is appropriate.
- D. If the Director discovers that a certified speech-language pathologist has a mental or physical illness or condition that affects the certified speech-language pathologist's ability to practice with reasonable skill and safety, and the certified speech-language pathologist has not timely notified the Director of such illness or condition, the certified speech-language pathologist may be subject to disciplinary action pursuant to section 12-305-112(2)(d)(I), C.R.S.

1.13 Duty to Report Convictions, Judgments, and Adverse Actions

The purpose of this Rule is to clarify the requirements and procedures for reporting convictions, judgments, and other adverse actions in order to enforce the provisions of section 12-305-112, C.R.S.

- A. A certified speech-language pathologist shall report to the Director, in a manner established by the Director, within thirty days of:
 - 1. A felony conviction of the certificate holder, or a conviction of any crime related to the practice of speech-language pathology, whether under the laws of this or any other state or the United States (a guilty verdict, or a plea of guilty, nolo contendere, or no contest accepted by the court is considered a conviction);
 - 2. A disciplinary action imposed upon the certificate holder by another jurisdiction that licenses, certifies, or registers speech-language pathologists which would otherwise be a violation of section 12-305-112, C.R.S., including but not limited to a citation, sanction, probation, civil penalty, or a denial, suspension, revocation or modification of a license or certificate, whether it is imposed by consent decree, order, or other decision, for any cause other than failure to pay a license fee by the due date or failure to meet continuing professional education or competency requirements;
 - 3. Revocation or suspension by another state board, municipality, federal or state agency of any health services related license or certificate; or
 - 4. Any judgment, award, or settlement of a civil action or arbitration, in any jurisdiction, in which there was a final judgment or settlement against the licensee or certificate holder with respect to the practice of speech-language pathology.
- B. Report contents.
 - 1. If the event is an action by any governmental agency, the report to the Director must include the name of the agency, its jurisdiction, the case name, court docket, proceeding or case number by which the event is designated, and a copy of the consent decree, order, or decision.
 - 2. If the event is a felony conviction, the report to the Director must include the court, its jurisdiction, the case name, the case number, a description of the matter or a copy of the indictment or charges, and any plea or verdict entered by the court. Within thirty days of the imposition of sentence for a felony conviction, the certificate holder shall provide to the Director a copy of the imposition of sentence. Within thirty days of the completion of any terms of the sentence, the certificate holder shall provide written notice to the Director of the completion of the sentence terms.
 - 3. If the event concerns a civil action or arbitration proceeding, the report to the Director must include the court or arbiter, the jurisdiction, the case name, the case number, a description of the matter or a copy of the complaint, and a copy of the verdict, the court or arbitration decision, or, if settled, the settlement agreement and court's order of dismissal.
- C. In addition to any report required under this Rule, the speech-language pathologist may also submit a written statement of explanation.

1.14 Duty to Report Change of Contact Information to the Director's Office

The purpose of this Rule is to clarify the requirement for certificate holders to notify the Director of a change in submitted information pursuant to section 24-34-107, C.R.S.

A certified speech-language pathologist shall report to the Office of Speech-Language Pathology Certification any name, address, telephone, or email change within thirty days of the change. The Office of Speech-Language Pathology Certification will not change a certified speech-language pathologist's information of record without explicit written notification from the certified speech-language pathologist. Notification in any written manner approved by the Division is acceptable.

1.15 Use of Title

The purpose of this Rule is to clarify the appropriate use of authorized titles pursuant to section 12-305-105, C.R.S.

- A. A speech-language pathologist shall only use the titles authorized by section 12-305-105(1), C.R.S., in conjunction with the practice of speech-language pathology.
- B. A speech-language pathologist shall not use the term "Doctor" or "Dr." in conjunction with the practice of speech-language pathology unless the speech-language pathologist has successfully completed a doctoral degree in communication sciences and disorders as described in section 12-305-107(1)(a), C.R.S.

1.16 Protection & Disposition of Patient Records

The purpose of this Rule is to specify a certified speech-language pathologist's responsibilities with respect to the patient access to, and security, maintenance, storage, disposal, and disposition of patient records as set forth in section 12-305-118, C.R.S.

- A. For purposes of this Rule and section 12-305-118, C.R.S., "certified speech-language pathologist responsible for patient records" means a certified speech-language pathologist who is
 - 1. Required under generally accepted standards of practice to document, without limitation, patient history, care, progress, or status; or
 - 2. Responsible for patient access to, or the security, maintenance, storage, disposal, or disposition of patient records.
- B. A certified speech-language pathologist responsible for patient records shall comply with the requirements of section 12-305-118, C.R.S., and with state and federal laws pertaining to patient access to, or the security, maintenance, storage, disposal, or disposition of patient records.
- C. A certified speech-language pathologist responsible for patient records may comply with the requirements of section 12-305-118(1), C.R.S., by adopting a written plan used by a hospital, clinic, or other organization with whom the speech-language pathologist is affiliated, provided that the written plan complies with the requirements of this Rule.
- D. A certified speech-language pathologist responsible for patient records shall comply with his or her written plan developed under section 12-305-118(1), C.R.S., to the extent said plan does not violate state or federal law.
- E. If a practice is composed of multiple certified speech-language pathologists responsible for patient records, the practice may provide the information required by section 12-305-118(3), C.R.S., on behalf of all certificate holders in the practice.
- F. In the case of an investigation, pending disciplinary action, or other administrative action undertaken by the Director, a certified speech-language pathologist shall retain patient records until the investigation, disciplinary action, or other administrative action is complete.

1.17 The Authorized Practice of Speech-Language Pathology by a Person Not Certified in Colorado

The purpose of this Rule is to outline the conditions under which a speech-language pathologist not certified in Colorado may practice for a limited period of time under section 12-305-110(1)(e), C.R.S.

A legally qualified speech-language pathologist from another state or country may, without the need for certification in Colorado, provide speech-language pathology services on behalf of a temporarily absent speech-language pathologist certified in this state, so long as the uncertified speech-language pathologist is acting in accordance with these rules and Article 305 of Title 12, C.R.S. The uncertified practice may not occur more than once annually and may not exceed a total of thirty calendar days' duration.

1.18 Declaratory Orders

The purpose of this Rule is to establish procedures for the handling of requests for declaratory orders filed pursuant to the Colorado Administrative Procedure Act at section 24-4-105(11), C.R.S.

- A. Any person or entity may petition the Director for a declaratory order to terminate controversies or remove uncertainties as to the applicability of any statutory provision or of any rule or order of the Director.
- B. The Director will determine, at her discretion and without notice to petitioner, whether to rule upon such petition. If the Director determines not rule upon such a petition, the Director will promptly notify the petitioner of her action and state the reasons for such decision.
- C. In determining whether to rule upon a petition filed pursuant to this Rule, the Director will consider the following matters, among others:
 - 1. Whether a ruling on the petition will terminate a controversy or remove uncertainties as to the applicability to petitioner of any statutory provisions or rule or order of the Director.
 - 2. Whether the petition involves any subject, question or issue that is the subject of a formal or informal matter or investigation currently pending before the Director or a court involving one or more petitioners.
 - 3. Whether the petition involves any subject, question or issue that is the subject of a formal or informal matter or investigation currently pending before the Director or a court but not involving any petitioner.
 - 4. Whether the petition seeks a ruling on a moot or hypothetical question or will result in an advisory ruling or opinion.
 - 5. Whether the petitioner has some other adequate legal remedy, other than an action for declaratory relief pursuant to C.R.C.P. 57, which will terminate the controversy or remove any uncertainty as to the applicability to the petitioner of the statute, rule, or order in question.
- D. Any petition filed pursuant to this Rule must set forth the following:
 - 1. The name and address of the petitioner and whether the petitioner is certified pursuant to Title 12, Article 305, C.R.S.
 - 2. The statute, rule, or order to which the petition relates.

3. A concise statement of all of the facts necessary to show the nature of the controversy or uncertainty and the manner in which the statute, rule, or order in question applies or potentially applies to the petitioner.
- E. If the Director determines that she will rule on the petition, the following procedures apply:
1. The Director may rule upon the petition based solely upon the facts presented in the petition. In such a case:
 - a. Any ruling of the Director will apply only to the extent of the facts presented in the petition and any amendment to the petition.
 - b. The Director may order the petitioner to file a written brief, memorandum, or statement of position.
 - c. The Director may set the petition, upon due notice to petitioner, for a non-evidentiary hearing.
 - d. The Director may dispose of the petition on the sole basis of the matters set forth in the petition.
 - e. The Director may request the petitioner to submit additional facts in writing. In such event, such additional facts will be considered as an amendment to the petition.
 - f. The Director may take administrative notice of facts pursuant to the Colorado Administrative Procedure Act at section 24-4-105(8), C.R.S., and may utilize her experience, technical competence, and specialized knowledge in the disposition of the petition.
 - g. If the Director rules upon the petition without a hearing, she will promptly notify the petitioner of her decision.
 2. The Director may, at her discretion, set the petition for hearing, upon due notice to petitioner, for the purpose of obtaining additional facts or information or to determine the truth of any facts set forth in the petition or to hear oral argument on the petition. The hearing notice to the petitioner must set forth, to the extent known, the factual or other matters that the Director intends to inquire. For the purpose of such a hearing, to the extent necessary, the petitioner has the burden of proving all the facts stated in the petition; all of the facts necessary to show the nature of the controversy or uncertainty; and the manner in which the statute, rule, or order in question applies or potentially applies to the petitioner and any other facts the petitioner desires the Director to consider.
- F. The parties to any proceeding pursuant to this Rule are the Director and the petitioner. Any other person may seek leave of the Director to intervene in such a proceeding, and leave to intervene will be granted at the sole discretion of the Director. A petition to intervene must set forth the same matters as are required by Section D of this Rule. Any reference to a "petitioner" in this Rule also refers to any person who has been granted leave to intervene by the Director.
- G. Any declaratory order or other order disposing of a petition pursuant to this Rule constitutes agency action subject to judicial review pursuant to the Colorado Administrative Procedure Act at section 24-4-106, C.R.S.

1.19 PROVISIONAL SPEECH LANGUAGE PATHOLOGY CERTIFICATION

The purpose of this Rule is to establish the qualifications and procedures for applicants seeking a provisional license to practice as a Speech Language Pathologist pursuant to section 12-305-108, C.R.S.

A. An applicant for provisional certification must have:

1. Successfully completed a master's or higher degree in communication sciences and disorders granted by an accredited institution of higher education recognized by the United States department of education. An applicant is presumed to have met the requirements of this paragraph if the applicant has successfully completed a master's or higher degree in a speech-language pathology program that is accredited by the council on academic accreditation of the American Speech-Language-Hearing Association or its successor association; and,
2. Passed either:
 - a. The national examination approved by the American Speech-Language-Hearing Association or its successor association; or,
 - b. An examination that, in the Director's determination, is substantially equivalent to the examination approved by the American Speech-Language-Hearing Association or its successor association.
 - (1) An applicant seeking certification under subparagraph (a)(2)(b) of this Rule bears the burden of proving to the Director that the examination is substantially equivalent to the examination approved by the American Speech-Language-Hearing Association or its successor association

B. An applicant for provisional certification must:

1. Submit a completed application for provisional certification in a manner prescribed by the Director;
2. Submit with the application all fees established by the Director pursuant to sections 24-34-101 *et seq.*, C.R.S.;
3. Attest that the applicant will, prior to providing speech-language pathology services to patients, maintain the professional liability insurance coverage required under Rule 1.6;
4. Attest that the applicant has developed a written plan for the completion of a speech-language pathology clinical fellowship.
5. Attest that the information in the application is true and correct to the best of the applicant's knowledge and belief; and
6. Submit additional information as may be required by the Director.

C. A provisional speech–language pathology certificate may be issued one time unless the certificate holder applies at least sixty days prior to the expiration of the provisional certification for a twelve month hardship extension of a provisional certification. The Director will consider the following criteria:

1. The negative effects on access to care in the community served by the provisional certificant or the employer of the provisional certificant;

2. Financial hardship; or
 3. Health hardships (Own or family member); or
 4. Lack of available supervisor or work; or
 5. Rural area hardship; or
 6. Educational Institute hardship; or
 7. Other good cause as determined by the Director.
- D. A provisional speech-language pathologist certificate expires no later than twenty-four months from the date of issuance unless a one time twelve month extension is granted pursuant to section (C) of this Rule.
- E. A provisional speech-language pathologist shall maintain and be covered by professional liability insurance in accordance with Rule 1.6, and submit proof of coverage to the Director upon request.
- F. A provisional speech language pathologist shall submit a plan for the completion of a speech-language pathology clinical fellowship upon the Director's request.

1.20 [Emergency rule expired 05/09/2023]

1.23 REQUIRED DISCLOSURE TO PATIENTS – CONVICTION OF OR DISCIPLINE BASED ON SEXUAL MISCONDUCT

- A. On or after March 1, 2021, a provider, shall disclose to a patient, as defined in section 12-30-115(1)(a), C.R.S., instances of sexual misconduct, including a conviction or guilty plea as set forth in section 12-30-115(2)(a), C.R.S., or final agency action resulting in probation or limitation of the provider's ability to practice as set forth in section 12-30-115(2)(b), C.R.S.
- B. Form of Disclosure: The written disclosure shall include all information specified in section 12-30-115(3), C.R.S., and consistent with the sample model disclosure form as set forth in Appendix B to these rules. The patient must, through his or her signature on the disclosure form, acknowledge the receipt of the disclosure and agree to treatment with the registrant.
- C. Timing of Disclosure: This disclosure shall be provided to a patient the same day the patient schedules a professional services appointment with the provider. If an appointment is scheduled the same day that services will be provided or if an appointment is not necessary, the disclosure must be provided in advance of the treatment.
1. The written disclosure and agreement to treatment must be completed prior to each treatment appointment with a patient unless the treatment will occur in a series over multiple appointments or a patient/patient schedules follow-up treatment appointments.
 2. For treatment series or follow-up treatment appointments, one disclosure prior to the first appointment is sufficient, unless the information the provider is required to disclose pursuant to section 12-30-115, C.R.S., has changed since the most recent disclosure, in which case an updated disclosure must be provided to a patient and signed before treatment may continue.

- D. As set forth in section 12-30-115(3)(e), C.R.S., the requirement to disclose the conviction, guilty plea, or agency action ends when the provider has satisfied the requirements of the probation or other limitation and is no longer on probation or otherwise subject to a limitation on the ability to practice the provider's profession.
- E. A provider is not required to provide the written disclosure before providing professional services to the patient in the following instances as set forth in section 12-30-115(4), C.R.S.:
 - 1. The patient is unconscious or otherwise unable to comprehend the disclosure and sign an acknowledgment of receipt of the disclosure pursuant to section 12-30-115(3)(d), C.R.S., and a guardian of the patient is unavailable to comprehend the disclosure and sign the acknowledgment;
 - 2. The visit occurs in an emergency room or freestanding emergency department or the visit is unscheduled, including consultations in inpatient facilities; or
 - 3. The provider who will be treating the patient during the visit is not known to the patient until immediately prior to the start of the visit.
- F. The provider who does not have a direct treatment relationship or have direct contact with the patient is not required to make the disclosure required by this section.

1.24 [Emergency rule expired 05/09/2023]

1.25 Concerning Health Care Provider Disclosures to Consumers about the Potential Effects of Receiving Emergency or Nonemergency Services from an Out-of-Network Provider

This rule is promulgated pursuant to sections 12-20-204, 12-30-112, and 12-305-115, C.R.S., in consultation with the Commissioner of Insurance and the State Board of Health. The purpose of this rule is to establish requirements for health care providers to provide disclosures to covered persons who are utilizing a health benefit plan about the potential of balance billing when receiving post-stabilization services or covered non-emergency services from an out-of-network provider at an in-network facility. This rule applies to health care providers. Balance billing by a health care provider is only permitted when the criteria established in Colorado law, including but not limited to sections 12-30-112 and 12-30-113, C.R.S., are met.

- A. Definitions, for purposes of this rule, are as follows:
 - 1. "Ancillary Services" as defined in section 12-30-112(1)(a), C.R.S.
 - 2. "Balance Bill" and "Balance Billing" as defined in section 10-16-704(19)(c), C.R.S.
 - 3. "Covered Non-emergency Services" means services that are not emergency services as defined in section 10-16-704(19)(e), C.R.S., are services covered by a covered person's health benefit plan, and are not ancillary services as defined in section 12-30-112(1)(a), C.R.S.
 - 4. "Covered Person" as defined by section 10-16-102(15), C.R.S.
 - 5. "Health Benefit Plan" as defined by section 10-16-102(32), C.R.S.
 - 6. "Health Care Provider" means "provider," as defined in section 10-16-102(56), C.R.S.
 - 7. "In-Network Facility" means a facility, either within or outside of Colorado, that, under a contract with a carrier or with its contractor or subcontractor, has agreed to provide

health-care services to covered persons with an expectation of receiving payment, other than coinsurance, copayments, or deductibles, directly or indirectly, from the carrier.

8. "Out-of-Network Provider" means a Health Care Provider who is not a "Participating Provider."
9. "Participating Provider" as defined in section 10-16-102(46), C.R.S.
10. "Post-Stabilization Services" means covered services related to an emergency medical condition, as defined in section 10-16-704(19)(d), C.R.S., that are provided once the criteria set forth in section 10-16-704(19)(e)(III) are met.

B. Disclosure requirements.

1. An Out-of-Network Provider may balance bill a Covered Person for (a) Post-Stabilization Services in accordance with section 10-16-704, C.R.S., and (b) Covered Non-Emergency Services provided in an In-Network Facility that are not Ancillary Services, but only if the Out-of-Network Provider meets the requirements set forth in section 12-30-112(3.5), C.R.S.
2. If a Covered Person may incur a claim for Post-Stabilization Services or Covered Non-Emergency Services from an Out-of-Network Provider, the Out-of-Network Provider shall complete and provide the notice contained in Appendix A of these rules or a similar disclosure which complies with the requirements set forth in section 12-30-112(3.5), C.R.S.
3. Such notice must be provided in the 15 most common languages in Colorado, which, for purposes of this regulation, are English, Spanish, Vietnamese, Chinese, Korean, Russian, Amharic, Arabic, German, French, Nepali, Tagalog, Japanese, Cushite, Persian.

C. If applicable and in addition to their responsibilities under this Rule, Health Care Providers shall also comply with the "No Surprises Act," 42 U.S.C.A. § 300gg-111, Pub.L 116-260, as amended.

D. Noncompliance with this Rule may result in the imposition of any of discipline made available by section 12-305-112(1)(e).

1.26 Protections for Provision of Reproductive Health Care in Colorado

This Rule is promulgated pursuant to Executive Order D 2022 032, and sections 25-6-401 *et seq.*, 12-305-115, and 12-20-204, C.R.S.

A. Definitions, for purposes of this Rule, are as follows:

1. "Applicant" means as defined in section 12-20-102(2), C.R.S.
2. "Assisting in the provision reproductive health care" means aiding, abetting or complicity in the provision of reproductive health care.
3. "Certificate holder" or "certificant" means as defined in section 12-20-102(3), C.R.S.
4. "Civil judgment" means a final court decision and order resulting from a civil lawsuit.
5. "Criminal judgment" means a guilty verdict, a plea of guilty, a plea of nolo contendere, or a deferred judgment or sentence.

6. "Provision of reproductive health care," includes but is not limited to, transportation for reproductive health care, referrals for reproductive health care and related services, funding or assisting with payment of reproductive health care, prescribing, shipping or dispensing medications for reproductive health care in accordance with state and federal law, all options and mental health counseling and treatment related to reproductive health care. The "provision of reproductive health care" also includes all treatment contemplated in the definition of section 25-6-402(4), C.R.S.
 7. "Regulator" means as defined in section 12-20-102(14), C.R.S.
 8. "Reproductive health care" means as defined in section 25-6-402(4), C.R.S.
- B. The regulator shall not deny certification to an applicant or impose disciplinary action against an individual's certificate based solely on the applicant or certificate holder's provision of or assistance in the provision of reproductive health care in this state or any other state or U.S. territory, so long as the care provided was consistent with generally accepted standards of practice as defined in Colorado law and did not otherwise violate Colorado law.
- C. The regulator shall not deny certification to an applicant or impose disciplinary action against an individual's certificate based solely on a civil or criminal judgment against the applicant or certificate holder arising from the provision of, or assistance in the provision of reproductive health care in this state or any other state or U.S. territory, so long as the care provided was consistent with generally accepted standards of practice and did not otherwise violate Colorado law.
- D. The regulator shall not deny certification to an applicant or impose disciplinary action against an individual's certificate based solely on a professional disciplinary action or any other sanction against the applicant's or certificate holder's professional certification in this, or any other state or U.S. territory so long as the professional disciplinary action is based solely on the applicant's or certificate holder's provision of, or assistance in the provision of, reproductive health care and the care provided was consistent with generally accepted standards of practice and did not otherwise violate Colorado law.
- E. The regulator shall not deny certification to an applicant or impose disciplinary action against an individual's certificate based solely on the applicant or certificate holder's own personal effort to seek or obtain reproductive health care for themselves. The regulator shall not deny certification to an applicant or impose disciplinary action against an individual's certificate based solely on a civil or criminal judgment against the applicant or certificate holder arising from the individual's own personal receipt of reproductive health care in this state or any other state or U.S. territory.

1.27 Protecting Colorado's Workforce and Expanding Licensing Opportunities

This Rule is promulgated pursuant to Executive Order D 2022 034, and sections 12-305-115, and 12-20-204, C.R.S.

- A. Definitions, for purposes of this Rule, are as follows:
1. "Applicant" means as defined in section 12-20-102(2), C.R.S.
 2. "Certificate holder" or "certificant" means as defined in section 12-20-102(3), C.R.S.
 3. "Civil judgment" means a guilty verdict, a plea of guilty, a plea of nolo contendere, or a deferred judgment or sentence.
 4. "Criminal judgment" means criminal conviction as defined in Rule 1.1.

- 5. "Licensee" means as defined in section 12-20-102(10), C.R.S.
- 6. "Regulator" means as defined in section 12-20-102(14), C.R.S.
- B. [Expired 05/15/2023 per Senate Bill 23-102]
- C. [Expired 05/15/2023 per Senate Bill 23-102]

APPENDIX A

BALANCE BILLING NOTICE

PATIENT RIGHTS INFORMATION

Check the appropriate box:

- ☐ Your provider is proposing to use an out-of-network care provider in delivering your health care service(s). This facility is in-network with your insurance but there may be care providers involved in your care that are out-of-network.
- ☐ Your provider is proposing to deliver post-stabilization care at an out-of-network facility. You have received emergency services at the out-of-network facility and are now stabilized, but you may require additional health care services.

You are not required to consent to receive these services from the out-of-network care provider or continue to receive post-stabilization care at an out-of-network facility. If you choose to proceed with the proposed out-of-network care provider or facility you may be billed for costs detailed in the Good Faith Estimate below. The additional costs you pay may not accrue toward insurance cost sharing or deductibles.

You may choose to use an in-network provider from the list below or you may choose to transfer your care to an in-network facility for post-stabilization services. If you choose to proceed with an in-network provider or transfer to an in-network facility, the cost will not exceed the amount allowed by your insurance plan.

You chose to receive this Notice ☐ electronically or ☐ in paper form.

This notice must have been provided to you, either in paper or electronically, per your preference within the following timeframes:

1. At least seventy-two hours in advance of the date of services, if the appointment was scheduled at least seventy-two hours in advance;
2. At least three hours before the scheduled appointment, if the appointment was made less than seventy-two hours in advance.

This is not a contract for services. Your provider is required to retain this form for seven years.

This form must be available to you in the 15 languages most common to the geographic region where your provider is located, which include English, Spanish, Vietnamese, Chinese, Korean, Russian, Amharic, Arabic, German, French, Nepali, Tagalog, Japanese, Cushite, and Persian.

BILLING ADVISEMENT

(choose applicable billing scenario)

- ☐ Out-of-Network Provider at In-Network Facility

Your provider is proposing to use an out-of-network care provider in delivering your service(s). That out-of-network provider is/are:

[PROVIDER NAME]

Description of service(s) to be provided by an in-network facility by an out-of-network provider:

[SERVICE]

You scheduled the service(s) on [DATE] at [TIME]. You are planning to receive the service(s) stated above on [DATE] at [TIME]

Do you need prior authorization from your insurance company for the service(s) provided at this facility?

[Y / N]

Good Faith Estimate for the total cost of the service(s) to you, the patient:

[\$]

Does this facility employ in-network care providers who provide the service(s) detailed above?

[Y / N]

If Yes, the in-network care provider(s) who provide the service(s) are:

[PROVIDER NAME]

NOTE: If there is no in-network provider to provide the service(s) at this in-network facility you cannot be balanced billed for the services provided by the out-of-network provider. **OR**

☐ Post-Stabilization Services

Your provider is proposing to deliver post-stabilization care at an out-of-network facility. The out-of-network facility is and/or the provider(s) is/are:

[FACILITY/PROVIDER NAME]

Description of post-stabilization service(s) to be provided by an out-of-network facility or provider:

[SERVICE]

You scheduled the service(s) on [DATE] at [TIME]. You are planning to receive the service(s) stated above on [DATE] at [TIME].

Good Faith Estimate for the total cost of the service(s) to you, the patient:

[\$]

I [PATIENT NAME] received this form at [TIME] on [DATE].

SIGNATURE OF PATIENT

[TIME] and [DATE]

APPENDIX B

MODEL SEXUAL MISCONDUCT DISCLOSURE STATEMENT

DISCLAIMER: This Model Sexual Misconduct Disclosure Statement is to be used as a guide only and is aimed only to assist the practitioner in complying with section 12-30-115, C.R.S., and the rules promulgated pursuant to this statute by the Director. As a licensed, registered, and/or certified health care provider in the State of Colorado, you are responsible for ensuring that you are in compliance with state statutes and rules. While the information below must be included in your Sexual Misconduct Disclosure Statement pursuant to section 12-30-115, C.R.S., you are welcome to include additional information that specifically applies to your situation and practice.

- A. Provider information, including, at a minimum: name, business address, and business telephone number.
- B. A listing of any final convictions of or a guilty plea to a sex offense, as defined in section 16-11.7-102(3), C.R.S.
- C. For each such conviction or guilty plea, the provider shall provide, at a minimum:
 - 1. The date that the final judgment of conviction or guilty plea was entered;
 - 2. The nature of the offense or conduct that led to the final conviction or guilty plea;
 - 3. The type, scope, and duration of the sentence or other penalty imposed, including whether:
 - a. The provider entered a guilty plea or was convicted pursuant to a criminal adjudication;
 - b. The provider was placed on probation and, if so, the duration and terms of the probation and the date the probation ends; and
 - c. The jurisdiction that imposed the final conviction or issued an order approving the guilty plea.
- D. A listing of any final agency action by a professional regulatory board or agency that results in probationary status or other limitation on the provider's ability to practice if the final agency action is based in whole or in part on:
 - 1. a conviction for or a guilty plea to a sex offense, as defined in section 16-11.7-102(3), C.R.S. or a finding by the professional regulatory board or Director that the provider committed a sex offense, as defined in as defined in section 16-11.7-102(3), C.R.S.; OR
 - 2. a finding by a professional regulatory board or agency that the provider engaged in unprofessional conduct or other conduct that is grounds for discipline under the part or article of Title 12 of the Colorado Revised Statutes that regulates the provider's profession, where the failure or conduct is related to, includes, or involves sexual misconduct that results in harm to a patient or presents a significant risk of public harm to patients.

- E. For each such final agency action by a professional regulatory board or agency the provider shall provide, at a minimum:
1. The type, scope, and duration of the agency action imposed, including whether:
 - a. the regulator and provider entered into a stipulation;
 - b. the agency action resulted from an adjudicated decision;
 - c. the provider was placed on probation and, if so, the duration and terms of probation; and
 - d. the professional regulatory board or agency imposed any limitations on the provider's practice and, if so, a description of the specific limitations and the duration of the limitations.
 2. The nature of the offense or conduct, including the grounds for probation or practice limitations specified in the final agency action;
 3. The date the final agency action was issued;
 4. The date the probation status or practice limitation ends; and
 5. The contact information for the professional regulatory board or agency that imposed the final agency action on the provider, including information on how to file a complaint.

Sample Signature Block

I have received and read the sexual misconduct disclosure by [Provider Name] and I agree to treatment by [Provider Name].

Print Client Name

Client or Responsible Party's Signature

Date

If signed by Responsible Party (parent, legal guardian, or custodian), print Responsible Party's name and relationship to client:

Editor's Notes

History

Entire rule eff. 05/15/2013.

Basis, Purpose, and Statutory Authority, Rules 7-9 eff. 11/30/2014.

Basis, Purpose, and Statutory Authority, Rules 6, 18 eff. 08/30/2015.

Rule 1.19, Appendix A emer. rules eff. 01/01/2020; expired 04/29/2020.

Rule 1.19, Appendix A eff. 04/30/2020.

Rule 1.20 emer. rule eff. 05/01/2020; expired 08/29/2020.

Rule 1.21 emer. rule eff. 05/11/2020; expired 09/08/2020.

Rule 1.20 emer. rule eff. 08/30/2020.

Rule 1.21 emer. rule eff. 09/09/2020.

Entire rule eff. 12/15/2020.

Rules 1.20, 1.21 emer. rules eff. 12/28/2020.

Rule 1.24 emer. rule eff. 01/11/2021.

Rules 1.20, 1.21 emer. rules eff. 04/27/2021.

Rule 1.24 emer. rule eff. 05/11/2021.

Rules 1.23 E-F eff. 05/30/2021.

Rules 1.20, 1.24 emer. rules eff. 07/12/2021.

Rules 1.20, 1.24 emer. rules eff. 11/02/2021.

Rules 1.20, 1.24 emer. rules eff. 03/02/2022.

Rules 1.20, 1.24 emer. rules eff. 06/28/2022.

Rules 1.26, 1.27 emer. rules eff. 08/15/2022.

Rule 1.6 eff. 09/14/2022.

Rules 1.20, 1.24 emer. rules eff. 10/26/2022.

Rules 1.20, 1.24 emer. rules eff. 11/11/2022.

Rules 1.19, 1.25-1.27, Appendix A eff. 11/30/2022.

Rules 1.20, 1.24 emer. rules eff. 01/09/2023; expired 05/09/2023.

Rules 1.25, Appendix A eff. 10/30/2025.

Annotations

Rule 1.23 E.4 (adopted 10/21/2020) was not extended by Senate Bill 21-152 and therefore expired 05/15/2021.

Rules 1.27 B. and 1.27 C. (adopted 10/10/2022) were not extended by Senate Bill 23-102 and therefore expired 05/15/2023.